

WEBSITE SERVICES AGREEMENT

Bay Ridge Homeowners Association, Inc. — WadingThruSecurity

This Website Services Agreement ("Agreement") is entered into as of the date last signed below ("Effective Date") by and between:

Service Provider:

WadingThruSecurity

("Service Provider")

Client:

The Bay Ridge Homeowners Association, Inc.

c/o The Paul Miller Company

272 Church Ave., Ste. 4

Chula Vista, CA 91910

("Client")

RECITALS

A. The Client is a California nonprofit mutual benefit corporation organized to serve the homeowners of the Bay Ridge community.

B. The Service Provider has expertise in website design, development, and ongoing web maintenance services.

C. The Service Provider has designed and developed a static website for the Client, hosted at no additional cost on GitHub Pages, and the parties now wish to formalize the terms governing that work and the ongoing maintenance of the website.

The parties therefore agree as follows:

1. SCOPE OF SERVICES

1.1 Completed Work

The Service Provider has already designed and developed the Client's website (the "Website"), which includes the following pages and features:

- Home page — General information and welcome content for the Bay Ridge community
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- Meeting Notes page — A section for publishing monthly board meeting notes, which authorized board members may update directly through the GitHub web interface
- Documents page — A hosted library of community documents including bylaws, CC&Rs, forms, and other PDFs
- Calendar page — A schedule of upcoming community events and board meetings
- Contact page — A contact form powered by Formspree, allowing community members to reach the board by email

The Website is built using Jekyll (a static site generator) and is hosted on GitHub Pages at no hosting cost to the Client.

1.2 Ongoing Maintenance and Support

During the Term of this Agreement, the Service Provider will provide the following ongoing services:

(a) Content Updates. Upon written or email request from an authorized Client representative, the Service Provider will make minor content updates to the Website, including text changes, document uploads, calendar additions, and similar edits. "Minor" updates means changes that do not require significant redesign or new feature development. Requests will be completed within **five (5) business days** of receipt, unless otherwise agreed.

(b) Meeting Notes Support. Board members are able to publish meeting notes directly through the GitHub web interface. If a board member requires assistance with this process, the Service Provider will provide reasonable guidance and, if needed, publish notes on the board's behalf.

(c) Technical Maintenance. The Service Provider will monitor the Website for technical issues, keep the Jekyll build configuration current, and address any errors or broken functionality that arise during the Term.

(d) Uptime Monitoring. The Service Provider will make reasonable efforts to monitor the Website's availability. Because the Website is hosted on GitHub Pages (a free third-party service), the Service Provider does not guarantee uptime but will promptly investigate and address any outages within its control.

(e) Domain and Hosting Coordination. If the Client holds a custom domain name, the Service Provider will assist with DNS configuration and coordination as needed to keep the Website accessible.

1.3 Out-of-Scope Work

The following are not included in this Agreement and would require a separate written agreement and additional fees if desired:

- Major redesigns or new feature development
- E-commerce, payment processing, or resident portal functionality
- Search engine optimization (SEO) campaigns
- Graphic design beyond minor updates consistent with the existing site design
- Migration to a different hosting platform

2. TERM AND TERMINATION

2.1 Term

This Agreement begins on the Effective Date and continues for one (1) year, unless terminated earlier in accordance with this Section ("Term").

2.2 Renewal

At the end of the Term, this Agreement may be renewed for additional one-year periods by mutual written agreement of both parties, executed no later than thirty (30) days before the expiration of the then-current Term.

2.3 Termination for Convenience

Either party may terminate this Agreement before the end of the Term by giving the other party at least **thirty (30) days' prior written notice**. Notice may be delivered by email to the address on file for each party, or by certified mail to the addresses listed above.

2.4 Effect of Termination

If the Client terminates this Agreement early, the Client is not entitled to a refund of any fees already paid. If the Service Provider terminates this Agreement early without cause, the Service Provider will refund a prorated portion of any prepaid fees corresponding to the remaining unused months of the Term.

Upon termination, the Service Provider will:

- Provide the Client with all website files, content, and credentials necessary to transfer or continue operating the Website
- Cooperate in good faith with any reasonable transition requests for up to fifteen (15) days following the termination date, at no additional charge

3. FEES AND PAYMENT

3.1 Annual Fee

The total fee for services under this Agreement is **\$300.00** for the full Term ("Annual Fee"). This flat rate covers all services described in Section 1.2 and is not subject to change during the Term.

3.2 Payment Schedule

The full Annual Fee of **\$300.00** is due in a single payment upon execution of this Agreement (i.e., on or before the Effective Date). Services will commence upon receipt of payment.

Payment	Amount	Due Date
Payment in full	\$300.00	Upon signing

3.3 Payment Method

Payment may be made by check payable to **WadingThruSecurity**, or by such other method as the parties agree upon in writing.

3.4 Late Payments

If any payment is not received within **fifteen (15) days** of its due date, the Service Provider may, at its option, suspend non-critical maintenance services until payment is received. The Service Provider will provide written notice before suspending services.

4. INTELLECTUAL PROPERTY

4.1 Client Content

All text, images, logos, documents, and other content provided by the Client or created specifically for the Client (collectively, "Client Content") remains the sole property of the Client. The Service Provider has no ownership interest in Client Content.

4.2 Website Codebase and Design

The Service Provider retains ownership of the underlying website codebase, templates, and technical configurations developed or adapted in connection with this Agreement (the "Codebase"). However, the Service Provider grants the Client a **perpetual, royalty-free, non-exclusive license** to use, modify, and operate the Codebase for the purpose of running the Client's website, including after this Agreement ends.

This means that if the Agreement ends for any reason, the Client may continue to operate and modify the Website without owing any additional fees to the Service Provider.

4.3 Open Source Components

The Website is built using open-source tools, including Jekyll and GitHub Pages. Those tools are governed by their own respective licenses and are not owned by either party.

5. CONFIDENTIALITY

Each party agrees to keep confidential any non-public information it receives from the other party in connection with this Agreement — for example, financial information, internal board communications, or system credentials — and to use that information only as necessary to fulfill obligations under this Agreement. This obligation does not apply to information that is publicly available, independently developed, or required to be disclosed by law.

6. REPRESENTATIONS AND WARRANTIES

6.1 By the Service Provider

The Service Provider represents that:

- It has the right and ability to enter into this Agreement and perform the services described
- The Codebase, to its knowledge, does not infringe any third-party intellectual property rights
- It will perform services in a professional and workmanlike manner

6.2 By the Client

The Client represents that:

- It has the authority to enter into this Agreement on behalf of the Bay Ridge Homeowners Association, Inc.
- All Client Content provided to the Service Provider is owned by the Client or used with proper permission, and does not infringe any third-party rights

7. LIMITATION OF LIABILITY

7.1 The Service Provider's total liability under this Agreement for any claim of any kind — whether based on contract, warranty, negligence, or any other legal theory — will not exceed the total fees paid by the Client during the twelve (12) months preceding the claim.

7.2 Neither party will be liable to the other for indirect, incidental, consequential, or punitive damages (such as loss of data, loss of revenue, or reputational harm), even if advised of the possibility of such damages.

7.3 The Service Provider is not responsible for outages, data loss, or service interruptions caused by GitHub Pages, Formspre, domain registrars, or any other third-party service outside the Service Provider's control.

8. INDEPENDENT CONTRACTOR

The Service Provider is an independent contractor, not an employee, partner, or agent of the Client. The Service Provider is solely responsible for its own taxes, insurance, and business expenses.

9. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement is governed by the laws of the State of California, without regard to its conflict-of-law principles. Any dispute arising out of this Agreement that the parties cannot resolve informally will be submitted to binding arbitration in San Diego County, California, under the rules of the American Arbitration Association, or to the appropriate California small claims court if the amount in dispute qualifies.

10. ENTIRE AGREEMENT AND AMENDMENTS

This Agreement, including any attachments or exhibits signed by both parties, constitutes the entire agreement between the parties regarding the Website services and supersedes all prior discussions, proposals, or agreements on the same subject.

Any modification to this Agreement must be made in writing and signed by authorized representatives of both parties. An email confirmation from both parties is sufficient to document a modification if both parties expressly agree to the change in writing.

11. MISCELLANEOUS

11.1 Notices. All formal notices under this Agreement must be sent by email with confirmation of receipt, or by certified mail to the addresses listed on the first page of this Agreement.

11.2 Severability. If any provision of this Agreement is found to be unenforceable, the remaining provisions will continue in full force and effect.

11.3 Waiver. Failure to enforce any provision of this Agreement does not constitute a waiver of the right to enforce it in the future.

11.4 Counterparts. This Agreement may be signed in counterparts (including PDF or electronic signature), each of which will be considered an original, and together they will form one complete Agreement.

SIGNATURES

By signing below, each party agrees to the terms of this Agreement.

SERVICE PROVIDER

WadingThruSecurity

Signature: \\\

Printed Name: \\\

Title: \\\

Date: \\\

CLIENT

The Bay Ridge Homeowners Association, Inc.

Signature: \\\

Printed Name: \\\

Title: _

Date: _